

Acme

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PLANNING AND ZONING COMMISSION-JULY 6 VERSION

PROPOSED AMENDMENT TO THE RULES & REGULATIONS GOVERNING ZONING IN SHERIDAN COUNTY, WYOMING

Section 7. Acme Special Use District

A. It is the intent of the Acme Special Use District to encourage uses that offer potential for economic development and job creation for Sheridan County in a manner that sustains community character, natural space, and scenic values associated with the Tongue River Valley. Land uses within this district shall be reviewed and approved by the county based on procedures, policies and standards set forth in this section including but not limited to land use compatibility, viewshed protection, design, circulation and access, natural feature preservation, open space, historical significance, and facilities/services.

B. Prohibited Uses, as found in the Rules and Regulations Governing Zoning in Sheridan County, Wyoming, dated October 19, 2021.

(1) The following uses shall be prohibited in the Acme Special Use District:

- a. Bottling Factory
- b. Cement Manufacture
- c. Chemical Plant, Process & Storage
- d. Concrete Batch Plant
- e. Creosote Mfg./Treating
- f. Drilling Rig, Assembly/Service
- g. Feed Lot, Commercial
- h. Gas & LPG Processing Plant
- i. Hot Mix Plant
- j. Junkyard/Salvage/Sorting/Recycling
- k. Explosives Manufacturing/Storage
- l. Manufactured home/Mobile home Sales/Storage
- m. Mineral Manufacturing/Refining/Processing
- n. Pipe Storage
- o. Pre-cast Concrete Manufacture
- p. Petroleum Refinery
- q. Landfill

- r. Sawmill
- s. Stockyard/Rendering Plant
- t. Toxic/Hazardous Waste Storage
- u. Vehicle Repair/Sales/Salvage/Storage

(2) All other uses are permitted subject to county approval in accordance with the procedures and standards set forth in this section, and other relevant adopted county rules.

C. Master Plan.

(1) Prior to commencing or expansion of any use in this district, except as provided herein, a master plan application shall be approved that conforms with prescribed standards, and conditions as may be required by the county. The plan shall be prepared by a licensed Wyoming professional qualified to perform such work.

(2) No master plan as provided for in this section shall be required for the following uses:

- a. Agriculture and accessory uses
- b. Agricultural Processing
- c. Residential Dwellings and accessory uses

Such uses shall be subject to provisions set forth for the A-Agricultural district.

(3) The master plan shall include the following:

- a. land uses
- b. building envelopes with distances to property lines, residential dwellings within one half (1/2) mile of the use, and natural drainage features
- c. landscaping and buffer areas
- d. existing and proposed utility lines
- e. existing and proposed easements
- f. open space, riparian habitat, wetlands, areas of protected natural habitat
- g. traffic study quantifying vehicular trips, access, parking layout and circulation based on accepted engineering best practices
- h. structural evaluation of, impacts to, and proposed mitigation of deficiencies to public roads
- i. drainage study and plan based on local engineering parameters
- j. regulatory special flood hazard areas and ordinary high-water marks
- k. existing and finished elevation contours

- l. steep slopes, as defined in these rules
- m. outdoor lighting locations including luminaire placement and fixture details
- n. types of signage and locations
- o. elevation drawings/renderings of proposed structures
- p. waste management plan
- q. water supply and sewage disposal plan

D. Master Plan Application Consideration.

- (1) Following the determination of master plan application completeness, the application shall be scheduled for public hearing and consideration at the next regular meeting of the Planning and Zoning Commission occurring no sooner than forty (40) days following said determination.
- (2) Mailed notification and publications regarding public hearings shall be in accordance with procedures established for conditional use permits. Property owners of record within one (1) mile of the proposed use boundaries shall be mailed notice of the Planning and Zoning Commission's public hearing.
- (3) The Planning and Zoning Commission shall conduct a public hearing as provided for in the public notice. Following the hearing (but not later than the conclusion of its next regularly scheduled meeting) the Commission shall make a recommendation to the Board to approve, approve with conditions, or deny the master plan application.
- (4) The applicant may supplement or revise the application responding to information gleaned at the public hearing held by the Planning & Zoning Commission within seven (7) days following the public hearing.
- (5) Following the Commission's recommendation, the master plan application shall be scheduled for a public hearing before the Board allowing for at least fourteen (14) days published notice.
- (6) The Board shall conduct a public hearing. At the conclusion of the public hearing held by the Board, the applicant may request that the Board defer action on the application to a future meeting to allow the applicant to supplement or revise the application responding to information gleaned at the public hearing. Such information shall be filed within seven (7) days after the public hearing. If such information constitutes a significant change to the application, the Board, in its discretion, may schedule a second public hearing on the application as revised.
- (7) Within forty-five (45) days from the date of completion of the Board's last public hearing, the Board shall render a decision upon the record either approving, approving with conditions, or denying the master plan application.

E. Minimum Standards.

(1) Setback distances.

- a. Three hundred (300) feet for any commercial or industrial structure, accessory exterior stockpile/storage area, or parking/loading/maneuvering area from any property line. This requirement may be waived in writing by the owner of any structure or residential dwelling that is closer than the three hundred (300) feet.
- b. Three hundred (300) feet for any commercial or industrial structure, accessory exterior stockpile/storage area or parking/loading/maneuvering area from the property line of any public recreation area.
- c. Fifty (50) feet for any commercial or industrial structure, accessory exterior stockpile/storage area or parking/loading/maneuvering area from any property or public road easement.
- d. A streams setback distance for any structure, accessory exterior stockpile/storage area or parking/loading/maneuvering area as specified in these rules. (See Section 23 B. 3.)

(2) Drainage.

- a. No above ground structure, exterior storage area or parking/loading/maneuvering area shall be located in a regulatory Special Flood Hazard Area (SFHA).
- b. Drainage improvements shall be installed that result in no net increase above historic runoff rates.

(3) On-site utility lines.

- a. All on-site electrical/communication lines shall be placed underground.

(4) Outdoor lighting.

- a. All site lighting shall be limited to the minimum necessary and full cutoff luminaires (e.g., "dark-sky" compliant) are required.

(5) Steep slopes/landslides.

- a. Development of steep slopes/landslides shall be governed as provided for in these rules. (See Section 23 C.)

F. Revocation or suspension of approval.

(1) Approval may be revoked or suspended by the Board for:

- a. Any materially false statement in the application or in accompanying statements or studies required of the applicant, if a true statement would have warranted the refusal to grant approval;
- b. Failure to comply with the terms or conditions of approval after notice of the failure and reasonable opportunity to correct the failure;

- c. Violation of these rules or valid orders of the Board;
- d. Failure of the applicant to maintain land rights necessary to operate the proposed use;
- e. From the date of approval, failure to within one (1) year, begin construction, and within two (2) years, complete construction of the proposed use.

G. Extension of Approval.

- (1) If construction of the use has not been commenced or has not become operational as required, the applicant(s) may request the Board for an extension of plan approval for a period of up to twelve (12) months upon a showing of good cause. The applicant(s) shall provide such information as is necessary for the County to determine whether good cause exists for the extension. Good cause may include, but is not limited to, good faith efforts to obtain required authorization for the use from other agencies with jurisdiction, delay in construction due to weather conditions, pending litigation, or other causes which have delayed the project and which are beyond the reasonable control of the applicant(s). The applicant(s) may request not more than two (2) separate extensions, from the Board, with such total extension period not to exceed twenty-four (24) months.

H. Transfer of Approval.

- (1) No plan approval shall be transferred without the prior consent of the Board.
- (2) The Board may transfer approval to a different person if the transfer request is initiated by a written request from the current holder and accompanied by a written acceptance including terms and conditions by the prospective transferee.

I. Minor Modifications and Amendments to an Approved Master Plan

The terms, conditions, and the approved master plan may be changed from time to time as follows:

- (1) Minor Modifications. The Zoning Administrator may approve minor modifications if required by engineering or other circumstances not foreseen at the time the master plan was approved so long as no modification violates any standard or regulation set forth in this section. The total of such modifications shall not in aggregate result in:
 - a. An increase of more than One (1%) percent in residential density;
 - b. An increase of more than Three (3%) percent in the floor area proposed for non-residential use of a commercial or industrial nature;
 - c. An increase of more than Two (2%) percent in the total ground area covered by buildings; and
 - d. A reduction of more than one (1%) percent in the area set aside for open space. Minor modifications in the location of roads and utilities may be approved under this section.

- (2) Amendments. Any uses or physical layout (exceeding a minor modification) not a part of the approved master plan may be made to the plan upon approval of an application by the Board for such following consideration procedures of subsection D. herein above.

Map to Accompany Proposed Acme Special Use District Amendment

